

Short Title	Session and Chapter
Finance Act, 1949	12, 13 & 14 Geo. 6. c. 47.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.
India (Consequential Provision) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 92.
Married Women (Maintenance) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 99.
Finance Act, 1950	14 Geo. 6. c. 15.
Housing (Scotland) Act, 1950	14 Geo. 6. c. 34.
Administration of Justice (Pensions) Act, 1950 ...	14 & 15 Geo. 6. c. 11.
Reserve and Auxiliary Forces (Training) Act, 1951	14 & 15 Geo. 6. c. 23.
Finance Act, 1951	14 & 15 Geo. 6. c. 43.
Guardianship and Maintenance of Infants Act, 1951	14 & 15 Geo. 6. c. 56.
Tithe Act, 1951	14 & 15 Geo. 6. c. 62.

CHAPTER 11

An Act to enable the Parliament of Northern Ireland to legislate with respect to fisheries in the Foyle Area and related matters.
[28th February 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

General
power to
legislate for
Foyle
fisheries.

1. Notwithstanding any restriction on the powers of the Parliament of Northern Ireland, that Parliament may legislate with respect to fisheries in the Foyle Area (of which part is in Northern Ireland and part in the Republic of Ireland), and may in particular—

- (a) authorise the acquisition of the fisheries in the tidal portions of the Lough and River Foyle and of its tributary the River Faughan by the Ministry of Commerce for Northern Ireland and the Minister for Agriculture for the Republic of Ireland acting jointly;
- (b) provide for the establishment of a Foyle Fisheries Commission having the functions of managing the fisheries so acquired and of conserving, protecting and improving the fisheries of the Foyle Area generally and also provide for members of the Commission being appointed by the said Ministry in Northern Ireland or the said Minister in the Republic of Ireland;

- (c) frame penal provisions with respect to fisheries in the Foyle Area so as to make it an offence for a person resident in Northern Ireland to do anything in the part of the Foyle Area outside Northern Ireland which would be an offence if done in the part in Northern Ireland;
- (d) authorise the apprehension and delivery to a member of the police forces of the Republic of Ireland of a person found offending in the Foyle Area against any law of the Republic of Ireland corresponding to a law of the Parliament of Northern Ireland passed by virtue of this Act, or corresponding to any other law relating to fisheries which has effect in Northern Ireland, where there is reason to believe that that person is resident in the Republic of Ireland;
- (e) confer by way of ancillary provisions powers of entry, search and seizure extending to aerodromes, aircraft and vessels in the Foyle Area.

2. A law of the Parliament of Northern Ireland providing for the establishment of a Foyle Fisheries Commission may exempt that Commission from liability for the payment of any tax whatsoever imposed by any existing or future Act of the Parliament of the United Kingdom in respect of the property in, or occupation of, any lands, tenements or hereditaments or in respect of any of its income. Power to exempt Foyle Fisheries Commission from taxes.

3. In this Act the expression "the Foyle Area" means the area comprising the fishery district originally created and defined as the Londonderry District by an order made on the ninth day of July, eighteen hundred and fifty-five, by the Commissioners of Fisheries. Meaning of "Foyle Area".

4. This Act may be cited as the Northern Ireland (Foyle Fisheries) Act, 1952.

